Evidence bundle (core: Tabs 1 to 7)

Great House Farm (Tŷ Mawr), Llandough-juxta-Penarth

Records referred to in the reply of October 2026 to BP Legal concerning a targeted records-preservation hold.
BP Properties Ltd v Buckler [1987] EWCA Civ 2

Prepared 23 October 2026. 7 tabs, 39 pages. Each record is reproduced as received from its source, without alteration; personal contact details were redacted in the published copies. Only the cover, this index, the tab dividers, the note at Tab 4 and the page numbers are new.

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Tab 1

Court of Appeal (Civil Division), BP Properties Ltd v Buckler [1987] EWCA Civ 2: judgment of Dillon LJ, with Mustill LJ and Sir Edward Eveleigh (BAILII text, full)

31 Jul 1987

Source: https://www.bailii.org/ew/cases/EWCA/Civ/1987/2.html

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Cite as: (1987) 284 EG 375, (1988) 55 P & CR 337, [1987] EWCA Civ 2

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BAILII Citation Number: [1987] EWCA Civ 2

Court of Appeal

31 July 1987

B e f o r e :

Lord Justice DILLON, Lord Justice MUSTILL and Sir Edward EVELEIGH

Between:
BP PROPERTIES LTD
V
BUCKLER

J B W McDonnell QC and M Jarman (instructed by Robbins Olivey & Blake Lapthorn, agents for Loosemores, of Cardiff) appeared on behalf of the appellant; Paul Morgan (instructed by Linklaters & Paines) represented the respondents.

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1. Giving judgment, DILLON LJ said: This appeal, by the defendant in the action against a decision of Hollis J given on July 24 1986 when he was sitting as a judge of the Queen's Bench Division in Cardiff, raises a novel question of some potential importance under the provisions of the Limitation Acts 1939 and 1980 in relation to the acquisition of title to land by adverse possession.

2. The action concerns a farm known as Great House Farm at Llandough near Penarth in South Glamorgan. The plaintiffs, BP Properties Ltd, have the paper title to the farm, and indeed since November 1982 they have been the registered proprietors of it at HM Land Registry following first

registration. They claimed possession against the defendant, Mr W Buckler ('Mr Buckler junior') and he sought to set up a possessory title by adverse possession by himself, and by his parents, Mr and Mrs Frederick Buckler, before him. The judge held that the suggested possessory title was not made out, and he accordingly made the possession order which the plaintiffs sought. Mr Buckler junior appeals against that order, but the appeal has been limited to the farmhouse itself and its garden, shown coloured red on the plan served with the statement of claim. So far as the rest of the farm is concerned, the possession order is not challenged, since the claim to a possessory title failed on findings of fact by the judge that the acts of so-called possession relied on were altogether too tenuous and equivocal to support the claim.

3. So far as the farmhouse and garden are concerned, however, the position on the facts is different, in that there is no doubt that Mr Buckler junior has exclusive possession of the farmhouse and garden, as his parents did before him, and no rent has been paid since 1953.

4. Great House Farm used to belong to the Marquis of Bute, and in February 1916 the Marquis granted a yearly agricultural tenancy of the whole of the farm to a Mr John Williams, who was Mr Buckler junior's maternal grandfather. In 1938 the reversion on that tenancy was conveyed to a company called Western Ground Rents Ltd.

5. It appears that Mr Williams, who may already by then have been elderly, fell into arrears with his rent in the mid-1930s and in the late 1940s. Because of that, agreement was reached for Mr Williams' tenancy to be surrendered and for a new yearly agricultural tenancy commencing at February 2 1949 to be granted to Mr Williams' son-in-law, Mr Frederick Buckler, who was the father of Mr Buckler junior. It was intended that Mr Frederick Buckler should have a written tenancy agreement, but this did not happen because Mr Frederick Buckler also failed to pay the rent. There is a letter from the landlords' agents to their solicitors of October 10 1952 stating that they did not propose to proceed with the letting to Mr Frederick Buckler. However, the conclusion must be that, even though there was no written agreement, Mr Frederick Buckler had a periodic tenancy which was protected by the Agricultural Holdings Act.

6. It is unnecessary to go into the details of the payments made by Mr Frederick Buckler. On the evidence, the last payment of rent made by him - in fact a payment under a judgment for arrears of rent - was made at some time in 1953. His tenancy was then duly terminated by a notice to quit which expired on February 2 1955. Western Ground Rents then brought proceedings for possession against Mr Frederick Buckler in the High Court and obtained a possession order, under Order 14, in respect of the whole of the farm. On July 4 1955 that possession order was enforced, and possession was taken in respect of all parts of the farm except the farmhouse and garden. The reason why the order was not enforced in respect of the farmhouse and garden was that Mrs Mary Buckler (daughter of Mr Williams, wife of Mr Frederick Buckler and mother of Mr Buckler junior) had recently come out of hospital after having had a leg amputated and was objecting very strongly to leaving the farmhouse. There was even, apparently, a fear that she might attempt suicide.

7. In the upshot, Mr and Mrs Frederick Buckler's occupation of the farmhouse and garden was undisturbed for many years. Mr Buckler junior was also there, but he was then only a boy, having been born on August 25 1948. Mr Williams and his wife Mrs Esther Williams had also been living there in 1955, but they died. By 1959, at any rate, Mrs Mary Buckler, who was also from time to time referred to as Mrs Williams, had conceived the notion that she had a title to the ownership of Great House Farm through her own grandfather and that there were documents in existence which proved her title. No such documents were, however, ever produced. She was offered a tenancy of the farmhouse and garden by Western Ground Rents but refused to accept it. She was also later offered, and refused, alternative accommodation.

8. The advisers of Western Ground Rents seem during these years to have supposed that, if they attended at the farmhouse from time to time and asserted Western Ground Rents' title, that was

sufficient to prevent time running against Western Ground Rents under the Limitation Act 1939. Plainly, however, that notion was erroneous, as section 13 of the Act provides that 'no person shall be deemed to have been in possession of any land by reason only of having made a formal entry thereon, and no continual or other claim upon or near any land shall preserve any right of action to recover the land'.

9. In 1962, however, Western Ground Rents brought a fresh action in Cardiff County Court against Mr Frederick Buckler and Mrs Buckler for possession of the farmhouse and garden and mesne profits since 1955. On December 11 1962 a possession order was made by Judge Temple Morris QC together with an order for payment of mesne profits. The latter was to some extent enforced, in that there seems to have been a suspended committal order against Mr Frederick Buckler in June 1963, but nothing was done before 1974 to enforce the 1962 possession order. In the meantime Mr Frederick Buckler died at some time in the period 1965-67, and in December 1969 Great House Farm, including the farmhouse and garden, was sold by Western Ground Rents to BP Pension Trust Ltd.

10. After the death of Mr Frederick Buckler, Mrs Buckler remained in possession of the farmhouse and garden, with various of her children living there with her, including Mr Buckler junior. No payment was made.

11. In 1974 BP Pension Trust Ltd started a fresh action in the Cardiff County Court for possession and mesne profits against Mrs Buckler (sued as Mrs Williams) and various members of her family, including Mr Buckler junior. This was adjourned part heard on July 3 1974 for a formal defence to be filed on behalf of Mrs Buckler, and a defence was filed asserting that BP Pension Trust's claim was barred by adverse possession under the Limitation Act 1939; so far as Mr Buckler junior is concerned, it was pleaded that he occupied the property as licensee of Mrs Buckler. That action has never been finally heard. However, on September 17 1974 BP Pension Trust Ltd gave notice of an application by them as successors in title to Western Ground Rents for leave to enforce the possession order of December 11 1962 (the order of Judge Temple Morris QC) and on September 19 1974 Judge Watkin Powell on that application gave BP Pension Trust Ltd leave to execute the order for possession of December 11 1962. He ordered that the possession warrant do issue forthwith but be not enforced until October 31 1974.

12. On October 30 1974 Mrs Buckler's solicitors issued a notice of appeal to this court against the order of Judge Watkin Powell (on the ground that Mrs Buckler had had insufficient notice of the application and therefore had had no opportunity of presenting her case) and her solicitors took an appointment before the judge in the Cardiff County Court for Monday November 4 for a stay of execution of his order of September 19 1974. More effectively, however, as soon as Judge Watkin Powell's order was known, a press campaign broke out in South Wales, with some support on television, against the threatened eviction of Mrs Buckler. Mrs Buckler was described as an elderly widow, confined to a wheelchair, who was being thrown out of the cottage her family had occupied for centuries, so that the historic cottage could be bulldozed to the ground and developers could build executive houses on the site.

13. Against that background, the two letters which are at the heart of this case were written. Both are dated October 31 1974. One is from BP Pension Trust Ltd and the other from the present plaintiffs, BP Properties Ltd. Both are addressed to Mrs Buckler (described again as Mrs Williams), but both were in fact sent not to her but to her solicitor, who seems to have received them on the morning of November 4, immediately before he made his application to Judge Watkin Powell in the Cardiff County Court.

14. The letter from BP Pension Trust is as follows:

> We have been advised that you are making an application to the Court for a Stay of Execution of the Order for Possession which was recently

> confirmed, and that you are proposing to apply to have the judgment of the Court, which we were seeking to enforce, set aside.
>
> You will, we hope, understand that the Trustees of The British Petroleum Pension Trust are not, and never have been, unsympathetic to your position, but they are bound in law to have a prime regard for the interests of their Pensioners and they had no alternative but to exercise remedies against you which the law provides.
>
> The only way in which they could safeguard your future occupation of Great House Farm is by selling the property to a purchaser who is not bound by similar constraints. We are now pleased to advise you that we have found such a purchaser in BP Properties Ltd, who have agreed to buy the property from the Trust. Accordingly, the instructions given to the Bailiff to execute the judgment of the Court have been withdrawn.
>
> As the Possession Order will not now be executed, your application for a Stay of Execution becomes unnecessary. Your Solicitors are immediately being advised accordingly.

15. The letter from BP Properties is as follows:

> You will be hearing separately from our Pension Trust that they are selling Great House Farm to BP Properties Ltd.
>
> As BP Properties is not obliged by the same constraints as the Pension Trust and since we wish to help you as much as possible, we are prepared to allow you to remain in occupation of the house and garden rent free for as long as you may wish and for the rest of your life if you so desire.
>
> I am pleased accordingly to confirm that we will not require you to give possession during your lifetime or until such time as you may choose no longer to live in the house, and we have given the necessary instructions so that no proceedings will be commenced until you personally no longer live there.
>
> I do hope that by making this gesture you will accept the situation and that no further problems will arise in the future.

16. Because of these two letters the landlords' solicitors did not attend the appointment before the judge on November 4 1974. Mrs Buckler's solicitors produced the letters to the judge, and he stayed execution on the warrant for possession pending Mrs Buckler's agreement to the proposals in the letters. Her solicitor then telephoned Mrs Buckler, told her of the letters and sought her instructions. Before she had given any instructions, however, the landlords' solicitors themselves wrote to the county court, at some date prior to November 25 1974 and withdrew the warrant for possession. Mrs Buckler therefore never expressly accepted or rejected the terms of the two letters. She was left in undisturbed possession of the farmhouse and garden, rent free, until her death, which occurred in March 1983.

17. As I have mentioned, BP Properties Ltd were registered as the proprietors of the whole of the farm at HM Land Registry in November 1982. If, however, by that time Mrs Buckler had acquired a valid title to the farmhouse and garden by adverse possession, she would have had an overriding interest to which the registration of BP Properties Ltd was necessarily subject, and her personal representatives would be entitled to obtain rectification of the register. In fact no grant of representation to the estate of Mrs Buckler has so far been obtained, but nothing has turned on this in the course of the argument since, even though on the facts Mr Buckler junior must claim

through Mrs Buckler's estate if he has any claim to the farmhouse and garden at all, BP Properties Ltd are concerned to establish their title and claim possession against all members of the Buckler family.

18. When this action was brought, the Limitation Act 1980 was in force. Section 15(1) provides that:

> no action shall be brought by any person to recover any land after the expiration of 12 years from the date on which the right of action accrued to him, or, if it first accrued to some person through whom he claims, to that person.

That is to the same effect as section 4(3) of the 1939 Act. Section 16 of the 1939 Act (now section 17 of the 1980 Act) provided that at the expiration of the period prescribed by the Act for any person to bring an action to recover land, the title of that person to the land should be extinguished. Accordingly the primary claim for Mr Buckler junior on this appeal has been that there was adverse possession of the farmhouse and garden from, at latest, February 2 1955 when Mr Frederick Buckler's tenancy expired, or alternatively from the date in 1953 when he last paid any rent, with the result that the landlord's title was extinguished at latest in February 1967 under section 16 of the 1939 Act. If that be right, it is submitted that what was done in 1974 was of no effect because the landlord's title had already been extinguished.

19. Alternatively, it is submitted for Mr Buckler junior that, even if the landlords' title had not been extinguished by October 31 1974, the proposals in the letters of that date, as they were merely unilateral and were never agreed to by Mrs Buckler, had no effect in law on the adverse nature of Mrs Buckler's continuing possession of the farmhouse and garden. It is admitted for BP Properties Ltd that Mrs Buckler was in adverse possession from her husband's death in 1965-67 until October 31 1974. It is submitted for Mr Buckler junior that, if the proposals in the letter had no effect in law on the adverse nature of Mrs Buckler's continuing possession, then the title of BP Properties Ltd was barred and extinguished on the expiration of 12 years from Mr Frederick Buckler's death, viz at latest in 1979.

20. A third argument put forward for Mr Buckler junior derives from the fact that the actual conveyance of the farmhouse and garden by BP Pension Trust Ltd to BP Properties Ltd did not take place until May 1975. It is consequently submitted that any licence to occupy rent free which was purportedly granted by the letters of October 31 1974 was granted by the wrong company; it should have been granted by BP Pension Trust Ltd, the legal and theretofore beneficial owner, and not by BP Properties Ltd. I see nothing in this rather technical point; the letters record sufficiently that BP Properties Ltd had agreed to buy the property from the Pension Trust, and BP Properties Ltd was therefore *prima facie* in a position to grant a licence to Mrs Buckler.

21. The judge rejected the primary claim on the ground that Mr Frederick Buckler's possession during his lifetime was not 'adverse', and so time did not begin to run against the landlords until after his death. On the second argument he held that the effect of the letters of October 31 1974 was to constitute Mrs Buckler the licensee of BP Properties Ltd, and thus no longer in adverse possession, even though the letters were written unilaterally and without any agreement with her. The defence under the 1939 and 1980 Acts therefore failed.

22. The judge concluded that Mr Frederick Buckler was not in adverse possession because in the judge's view adverse possession required an *animus possidendi. Animus possidendi* was defined by Slade J in *Powell* v *McFarlane* (1979) 38 P & CR 452 at p 471 as involving:

> the intention, in one's own name and on one's own behalf, to exclude the world at large, including the owner with the paper title if he be not himself

> the possessor, so far as is reasonably practicable and so far as the processes of the law will allow.

The judge felt that Mr Frederick Buckler did not have this *animus* partly because at one stage in March 1965 when Western Ground Rents' agents offered Mrs Buckler a tenancy Mr Frederick Buckler was complaining that Western Ground Rents had refused to let him the land (thus perhaps suggesting that he himself would have been glad of the offer of a tenancy), and partly, I think, because at another time Mr Frederick Buckler was saying that he did not want to do anything which might jeopardise Mrs Buckler's claims to ownership of the land. The judge then held - paradoxically, in my view, on the facts of this case - that he could not give any effect to Mrs Buckler's obvious *animus possidendi* while her husband was alive, since, while he was alive, only his intention counted.

23. For my part, I would hold without hesitation on the facts that Mr and Mrs Frederick Buckler were jointly in adverse possession of the farmhouse and garden from the expiration on February 2 1955 of his previous tenancy. It is possible, as the previous tenancy was not under a written agreement, that there was adverse possession also from the last payment of rent in 1953 to February 2 1955; see *Hayward* v *Chaloner* [1968] 1 QB 107. But the extra period has no relevance to the outcome of this appeal.

24. Even if there were adverse possession from February 2 1955 or from the last payment of rent in 1953, it does not follow that the landlord's title was 'extinguished' 12 years thereafter in any sense which would render what was done in September, October and November 1974 nugatory. The statutory concept of the 'extinguishment' of a person's title by a requisite period of occupation was examined by Lord Radcliffe in *St Marylebone Property Co Ltd* v *Fairweather* [1963] AC 510. He pointed out at p 535 that the squatter comes in and remains in always by right of possession which in due course becomes incapable of disturbance as time exhausts the one or more periods allowed by statute for successful intervention. He commented, also at p 538, that the right or title extinguished was conterminous with the right of action, the barring of which was the occasion of the extinguishment.

25. In the present case the 1962 county court proceedings were commenced, and the possession order of December 11 1962 was obtained, well before there had, on any view, been 12 years' adverse possession of the farmhouse and garden. If proceedings to recover land are begun before there has been 12 years' adverse possession - eg if they are begun in the eleventh year - then the right of action is, on the wording of section 4(3) of the 1939 Act or section 15 of the 1980 Act, unaffected by the subsequent expiration of the 12-year period while the proceedings are pending. If that be so, it could not, in my judgment, be a correct reading of section 16 of the 1939 Act to hold that the title of the plaintiff to the land is extinguished while an action for the recovery of the land, launched in due time, is still pending. On Lord Radcliffe's approach the title can then be extinguished only if or in so far as it cannot be established and vindicated by the action which has been brought in due time.

26. So again, if an action to recover land is brought within the 12 years and judgment for possession is given in that action, albeit after the expiration of the 12 years, it would be idle to suppose that the judgment for possession could, because of the expiration of the 12 years, never be enforced. The judgment must be enforceable if the action was started in due time. So equally, if the action is started in due time, and judgment for possession is granted, eg shortly before the expiration of 12 years from the date on which the right of action accrued, it could not be suggested that the judgment would cease to be enforceable on the expiration of 12 years from the date on which the original right of action accrued.

27. The true position, in my judgment, under the 1939 Act was that after a judgment for possession had been obtained in an action for the recovery of land begun in due time, the successful plaintiff had 12 years from the date of the judgment to enforce the judgment before any question of

limitation could arise. This result may follow from the view expressed by Scott LJ in *Lougher* v *Donovan* [1948] 2 All ER 11 that an application to issue or extend a warrant for possession under a judgment for possession is itself an 'action brought upon a judgment' for which there was a prescribed limitation period of 12 years under section 2(4) of the 1939 Act. Alternatively, it may be based on the view expressed by the editors of the *County Court Practice* in their notes to the present Order 26, rule 5 that, although the right to sue on a judgment has always been regarded as a matter quite distinct from the right to issue execution under it which is essentially a matter of procedure (*W T Lamb & Sons* v *Rider* [1948] 2 KB 331), nevertheless leave to issue a warrant of execution will not be granted, nor will a warrant issued be renewed, at a time when the limitation period appropriate to an action on the judgment has expired. It is unnecessary to explore in any detail the mechanics for enforcing a judgment for possession. The order of Judge Watkin Powell of September 19 1974 giving leave to enforce the order for possession of December 11 1962 was made within 12 years after the making of the order for possession and accordingly was an order which Judge Watkin Powell had jurisdiction to make.

28. It follows that enforcement of the judgment for possession of December 11 1962 was still open to the landlords at October 31 1974, and their title to the farmhouse and garden had not been extinguished. I would accordingly reject the contention that Mrs Buckler had acquired a title by adverse possession before October 31 1974.

29. It remains to consider the effect on Mrs Buckler's possession of the letters at that date. These unilaterally granted her a licence to occupy the farmhouse and garden rent-free for the rest of her life.

30. Section 10(2) of the 1939 Act provides that:

> Where a right of action to recover land has accrued and thereafter, before the right is barred, the land ceases to be in adverse possession, the right of action shall no longer be deemed to have accrued and no fresh right of action shall be deemed to accrue unless and until the land is again taken into adverse possession.

31. It is said for BP Properties Ltd that under the letters Mrs Buckler became a licensee for life of the farmhouse and garden. Therefore she was no longer in adverse possession and time ceased to run in her favour. This is supported by the statement of Slade J in *Powell* v *McFarlane* at p 469 that time can never run in favour of a person who occupies or uses land by licence of the owner with the paper title and whose licence has not been duly determined. In so far as it is urged for the other side that Mrs Buckler's possession continued to be adverse before and after the receipt of the letters, without any change, and was referable to her own expressed belief that she was the owner of the land because of her grandfather's title, it is said for BP Properties Ltd that there is a rule that 'possession is never adverse if it can be referred to a lawful title', and reference is made to the judgment of Harman LJ in *Hughes* v *Griffin* [1969] 1 All ER 460 at p 464.

32. The claim that a unilateral licence can stop time running is a new one. It may be of some general importance in that it would enable a person who is not prepared to incur the obloquy of bringing proceedings for possession, or of enforcing a possession order, to keep his title alive for very many years until it suits him to evict. It might be thought that for title to be kept alive in this way was contrary to the policy of the statute as exemplified by section 13 of the 1939 Act, which reproduced earlier statutory provision to the same effect and prevented any right of action to recover land being preserved by formal entry or continual claim.

33. So far as the facts are concerned, it would in my judgment be artificial to say that Mrs Buckler 'accepted' the terms set out in the two letters; BP Properties Ltd neither sought nor waited for her acceptance. It would be equally artificial to say that there was any consideration in law for those terms.

34. It may be that the result would have been different if Mrs Buckler had, as soon as she learned of the letters, plainly told BP Properties Ltd that she did not accept the letters, and maintained her claims to be already the owner of the property; she did not, however, do that. She accepted her solicitors' advice that as the warrant for possession had been withdrawn, she should do nothing while the 12-year period from the date of the possession order of December 11 1962 expired. In essence she was not asserting during the time from the receipt of the letters until after December 11 1974 - or indeed thereafter - any claim to ownership of the farmhouse and garden, or any intention to exclude the owner of the paper title.

35. Whether BP Properties Ltd could or could not in law, in the absence of consideration, have sought to determine in her lifetime the licence granted to Mrs Buckler by the two letters, they did not in fact seek to do so. Had they sought to do so, they would in the absence of any repudiation of the letters by Mrs Buckler have had to give Mrs Buckler a reasonable time to quit as with any licensee.

36. The nature of Mrs Buckler's possession after receipt of the letters cannot be decided just by looking at what was locked up in her own mind. It must depend even more, on this aspect of the case, on the position as seen from the standpoint of the person with the paper title. What could that person have done? The rule that possession is not adverse if it can be referred to a lawful title applies even if the person in possession did not know of the lawful title; the lawful title would still preclude the person with the paper title from evicting the person in possession. So far as Mrs Buckler was concerned, even though she did not 'accept' the terms of the letters, BP Properties Ltd would, in the absence of any repudiation by her of the two letters, have been bound to treat her as in possession as licensee on the terms of the letters. They could not have evicted her (if they could have done so at all) without determining the licence.

37. I can see no escape therefore from the conclusion that, whether she liked it or not, from the time of her receipt of the letters, Mrs Buckler was in possession of the farmhouse and garden by the licence of BP Properties Ltd, and her possession was no longer adverse within the meaning of section 10 of the 1939 Act.

38. Accordingly I would dismiss this appeal.

39. MUSTILL LJ and SIR EDWARD EVELEIGH agreed and did not add anything.

    The appeal was dismissed and possession ordered in six weeks. Leave to appeal to the House of Lords was refused but a stay pending a possible application to the House was granted on terms. An order for costs against the appellant was not to be enforced without leave and legal aid taxation of appellant's costs was ordered.

The electronic text of this judgment was provided by Estates Gazette, whose assistance is gratefully acknowledged.

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URL: *https://www.bailii.org/ew/cases/EWCA/Civ/1987/2.html*

Tab 2

HM Land Registry, Wales Office, ref N610CGV, title WA231076: stage one complaint decision setting out the first-registration history, the recitals of the 1975 and 1982 conveyances to the conveyance of 31 December 1969, and the 1971 abstract of title

19 Apr 2026

Source: https://wayback.bucklerfamily.estate/pdf/foi/2026-04-19_hmlr_stage-one-complaint-decision.pdf

Bundle pages 12 to 17

HM Land Registry
Wales Office

Cofrestrfa Tir EF
Swyddfa Cymru



District Land Registry For Wales
DX 82800
SWANSEA 2

Sent by email

Email sent to:
[redacted]

Date/Dyddiad
19 April 2026

Your ref/Eich cyf
EDD

Our ref/Ein cyf
N610CGV

HM Land Registry
Wales Office
PO Box 7803
Bilston
WV1 9QN

DX 427301 Bilston 3

https://www.gov.uk/guidance/contact-hm-land-registry

www.gov.uk/land-registry

Cofrestrfa Tir EF
Swyddfa Cymru
PO Box 7803
Bilston
WV1 9QN

DX 427301 Bilston 3

https://www.gov.uk/guidance/contact-hm-land-registry.cy

www.gov.uk/land-registry

HM Land Registry welcomes correspondence in English and Welsh / Mae Cofrestrfa Tir EF yn croesawu gohebiaeth yn Gymraeg a Saesneg

Proprietor/Applicant	**Persimmon Homes (wales) Limited**
Title number	**WA231076**
Property	**Land On The North Side Of Leckwith Road, Llandough**

Dear Customer

Thank you for your letter of 24 March 2026 which has been referred to me to consider under stage one of HM Land Registry's (**"HMLR")** Complaints Procedure. I am an Assistant Land Registrar / HM Land Registry lawyer, and it is part of my role to make legal decisions on behalf of the Chief Land Registrar about land registration matters.

We consider a complaint as "any expression of dissatisfaction - either spoken or written that requires a response" under HMLR's Complaints Procedure. As your correspondence expresses dissatisfaction about a legal decision, I am treating it as a complaint. I hope that my response below will address your concerns and explain the situation to you.

Your complaint

My understanding is that your complaint is about the following points

- That the first registration of the land was procured by identity fraud by BP Properties Limited and that HMLR should have investigated whether there was any dispute regarding possession
- HMLR was negligent / maladministrative in dealing with the application for first registration of the Property
- You have made a request for indemnity under the HM Land Registration indemnity scheme

Summary of decision

I have concluded my investigation of your complaint under stage one of HMLR's Complaints Procedure, and my decision is to not uphold (this means that I have decided that HMLR has acted correctly in accordance with the law and our policy and procedures) your complaint. I have set out my full response to your complaint below.

HMLR operates a two stage internal complaints procedure, and this letter represents our first stage response.

Further information about our complaints procedure can be found here: www.gov.uk/government/organisations/land-registry/about/complaints-procedure

HMLR's role

It may help you to understand our role and what we are able to do to help our customers with the applications they make.

HMLR is a government department responsible for registering the ownership of land and property in England and Wales. Our legal duties and powers are set out in the Land Registration Act 2002 (**"the Act"**) and the Land Registration Rules 2003 (as amended) ("**the Rules**"). Previous relevant acts included the Land Registration Act 1925.

Our basic role is to keep a register of interests in property, so that the public have easy access to reliable information about land ownership and interests in land.

Because HMLR is an administrative agency rather than a court or tribunal, we do not have the legal power to make or enforce a decision in the same way as a court or tribunal can nor do we have any investigative powers.

Background / History

In unregistered conveyancing, title is ultimately based on the estate owner's right to be in possession of the land or to receive the rents and profits of it. Showing a full documentary title commencing with a good root of title that is at least 15 years old should normally establish this right and is sufficient for land registration purposes.

The registration history of the Property has been set out by my colleague Ms Smith in her letter of 23 March 2026. To expand on that, the application for first registration for the land comprised in title WA231076 was made on 30 November 1982. The list of deeds and documents of title lodged in support of the application are listed in the form 'DL ('document list'). Our files show an abstract of title listed dated 1971 was lodged with the application for first registration. This is effectively a summary of deeds, documents and events which show a person's title to unregistered land. It may be written in legal shorthand

The deed which conveyed the Property to the applicant for first registration was a conveyance dated 19 November 1982 made between (1) The British Petroleum Pension Trust (2) BP Trustees Limited and (3) BP Properties Limited. The recitals clause (preamble) to that Conveyance states *'The Vendors are seised in fee simple in the premises described in the First Schedule hereto (hereinafter called "the premises") upon the Trusts referred to in a Conveyance dated 31 December 1969 and made between Western Ground Rents Limited of the one part and the Vendors of the other part..'* It is clear therefore that the applicant (BP Properties Limited) could show a good root of title and that The British Petroleum Pension Trust acquired the land in 1969.

As to the land comprised in WA240304, the application for first registration was made on 23 February 1983 and the applicant was again BP Properties Limited. A request was made to amalgamate the two titles together. The deed which conveyed the Property to the applicant was a conveyance dated 23 May 1975 made between (1) The British Petroleum Pension Trust Limited (2) BP Trustees Limited and (3) BP Properties Limited. The recitals clause to that Conveyance states '*The Vendors are seised in fee simple upon the trusts referred to in a conveyance dated the thirty first day of December One thousand One hundred and sixty nine and made between Western Ground Rents Limited of the one part and the vendors of the other part.'* Again, our files indicate that we had sight of a copy of a 1971 abstract of title.

Consideration and analysis

Historic dispute / identity fraud

HM Land Registry is required to check each application includes the information required under the relevant law applicable at the time an application is lodged, and that there are no obvious gaps or inconsistencies in an application. We are not, however, required to make enquiries to ensure that each title includes a comprehensive list of all interests and rights affecting a particular piece of land. Our role is to respond to the applications we receive, rather than to be pro-active in establishing what rights and interest may exist.

HM Land Registry application form FR1 contains certain certificates by the solicitors acting for the applicants. These include:
"We are not aware of any question or doubt affecting the title to the land or any part thereof, or of any matter or thing whereby the title is or may be impeached, affected or called into question in any matter whatsoever'. HM Land Registry is entitled to rely on those certificates when examining deeds lodged and granting title to land.

You have provided a detailed timeline regarding the possession of the property by your relatives. It appears the basis of your claim is that there had been a long running dispute and historic adverse possession of the Property which had the result of extinguishing the documentary title such that the registration of the title created a

mistake in the register.

As you reference in the timeline, the Court of Appeal heard the dispute relating to the claim of adverse possession in the case of BP Properties Limited v Buckler [1987] EWCA Civ 2] which found that an offer to remain on the land made by the landowner constituted permission and that from that point it was occupied under a licence such that possession was no longer adverse. It did not matter that the offer was never accepted.

As explained above, HM Land Registry has an administrative function and it is not for the Registrar to look behind or challenge decisions of the Court. Your claims relating to 'identify fraud' relating to how your grandmother was addressed by the documentary title holder are not relevant to the issue of title to the land. They relate to the dispute which was heard by the Court.

It is clear that you disagree with the findings of the Court but the appropriate forum for any challenge is the judicial system and not HM Land Registry.

Negligence / Maladministration of HM Land Registry

Having reviewed our records held in relation to the applications made for first registration of the Property, I am satisfied that the registered proprietor evidenced a good documentary title to the land. Our practice and procedures were correctly followed and there is no evidence of negligence or maladministration on the part of HM Land Registry.

Indemnity

The registrar has the power to make alterations for the purpose of:

(a) correcting a mistake;
(b) bringing the register up to date;
(c) giving effect to any estate, right or interest excepted from the effect of registration; or
(d) removing a superfluous entry.

None of the above would apply in this case. There is no evidence of a mistake in the register.

HMLR can make payments in accordance with the statutory indemnity scheme, as detailed under Schedule 8 of the Act, to anyone who suffers loss because of:

- A mistake (error) in the register that could have been rectified (corrected) but was not; or
- A mistake in the register before it was rectified.

As there is no evidence of a mistake in the register, there is no right to make a claim under the indemnity scheme.

My decision

For the reasons set out above, my decision is to not uphold your complaint. If you wish to obtain official copies of any documentation you will need to apply for these. Please see HM Land Registry Practice Guide 11 for further information. You may also find the provisions of HM Land Registry Practice Guide 39 of assistance.

If you are not satisfied

I hope that my response has clarified HM Land Registry's position in relation to your complaint. If you remain dissatisfied, you may wish to progress your complaint to the next stage of our Complaints Procedure.
If you want to begin stage two of our Complaints Procedure, please reply to this letter telling us why you are unhappy with my response and provide the following information:

- Identify the particular decision(s) you consider to be incorrect.

- Explain why you think that my decision was incorrect. For example, if it is because of my account of the facts, please say which facts; if it is because of my understanding of the law, please say what part of the law.

- Set out what you think would be the correct decision.

Your complaint will then be reviewed by a Land Registrar (Senior Officer), and you will be contacted within 20 working days.

If you require this correspondence in an alternative format please contact us, quoting our reference.

Yours faithfully,

Charlotte Takeuchi
Assistant Land Registrar / HM Land Registry

Tab 3

HM Land Registry, Wales Office, ref N610CGV: letter listing the documents held on the first-registration files for WA231076 (30 items) and WA240304 (13 items)

30 Jul 2026

Source: https://wayback.bucklerfamily.estate/pdf/foi/2026-07-30_hmlr_first-registration-schedule.pdf

Bundle pages 18 to 21

HM Land Registry
Wales Office

Cofrestrfa Tir EF
Swyddfa Cymru

Mr S Buckler

Sent by email

Email sent to:
[redacted]

Date/Dyddiad
30 July 2026

Your ref/Eich cyf
EDD

Our ref/Ein cyf
N610CGV

HM Land Registry
Wales Office
PO Box 7803
Bilston
WV1 9QN

DX 427301 Bilston 3

https://www.gov.uk/guidance/contact-hm-land-registry

www.gov.uk/land-registry

Cofrestrfa Tir EF
Swyddfa Cymru
PO Box 7803
Bilston
WV1 9QN

DX 427301 Bilston 3

https://www.gov.uk/guidance/contact-hm-land-registry.cy

www.gov.uk/land-registry

HM Land Registry welcomes correspondence in English and Welsh / Mae Cofrestrfa Tir EF yn croesawu gohebiaeth yn Gymraeg a Saesneg

Proprietor/Applicant	**Persimmon Homes (wales) Limited**
Title number	**WA231076**
Property	**Land On The North Side Of Leckwith Road, Llandough**

Dear Mr Buckler

Thank you for your emails dated 2 and 3 June 2026 where you have requested clarification regarding the first registration files relating to titles WA231076 and WA240304.

We can only apologise for the delay in replying but this was due to us obtaining departmental files and checking through what information, we have available.

After an investigation of our files, we can confirm that the following documents are available.

The documents indicated in the **bold text** are the first registration documents.

For title WA231076-Known as land on the North side of Leckwith Road, Llandough. We have the following documents: -

(1) Conveyance dated 23 February 1905
(2) Agreement dated 15 May 1924
(3) Deed 29 March 1961
(4) Conveyance dated 19 November 1982
(5) Correspondence 6 February 2026
(6) Application form to convert the title into a computerised format
(7) A4 application dealing form dated 20 January 1994 to transfer the property From B P properties limited to Ideal Homes Wales Limited
(8) Deposit application form A15 dated 14 September 1989
(9) Departmental Copy of register dated 13 May 1992- very poor quality
(10) Transfer of part dated 10 October 1989 Made between (1) BP Properties Limited and (2) Howard John

Gough and Sylvia Mary Gough

(11) Transfer dated 3 December 1993 Made between (1) BP Properties Limited and (2) Ideal Homes Limited

(12) Application form dated 20 January 1994 Internal application form to correct the title

(13) Application form 1E dated 30 November 1982-was the application for that gave rise to the first registration

(14) Application form to amalgamate the title dated 2 February 1987

(15) Application form A3 dated 13 January 1984

(16) Customer correspondence dated 12 May 1983 several letters from Linklaters & Paynes and LR

(17) A13- DL-List of documents lodged with first registration

(18) Letter from Linklaters & Paines undated to LR

(19) A28. Draft entries application form

(20) Customer correspondence dated 12 October 1995 from Ideal Homes

(21) Customer correspondence LR to Ideal Homes PLC

(22) Application form dated 13 October 1994 to correct the title.

(23) Copy of Register edition dated 13 January 1984

(24) Copy of register edition date 20 January 1994

(25) Copy of register edition date 20 January 1994

(26) Copy of register edition date 20 January 1994

(27) Copy of register edition date 13 October 1994

(28) Copy of register edition date 5 January 1995

(29) Customer Correspondence dated 18 March 1996 from Persimmon Homes

(30) Dealing Application form header dated 19 March 1996

For title WA240304 which the title has been since closed. we have the following documents:-

(1) Plan to Conveyance dated 23 May 1975
(2) Application form for Cis for amalgamation-no annotation on it.
(3) Internal CIS application form
(4) Customer correspondence dated 12 April 1983
(5) Letters undated-Several letters from Linklaters and Paines to HM Land Registry
(6) Application form A28
(7) Application form D23 (inside exam) and letter dated 8 April 1983 from Linklaters & Paines
(8) MB1 internal application form.
(9) Old title Plan for WA240304

(10) Copy of Register edition date 23 February 1983

(11) Form 1C application form from Linklaters & Paines

(12) Conveyance 23 May 1975

(13) Plan to conveyance dated 23 February 1975

We can confirm that all these documents are held on file and will remain on file. They are all open to public inspection if require copies of them.

If you would like to request any copies of any of the documents, please see the following information on how to apply for them.

You can apply for copies of deeds and documents, that we hold by completing form OC2 and sending it to us by post.

When filling in the form, be sure to:

- enter the details of the land or property that you would like to find out about
- enter the title number (our unique identifying reference)
- enter your own details into the applicant fields
- provide as much detail as you can about the deeds or documents you want copies of

Fees are payable - please see the Fee Guide.
Fees are £11 per document

Cheques/postal orders should be made payable to HM Land Registry. We do not currently accept card payments for applications.

Please send the completed application to:
HM Land Registry
Citizen Centre
PO Box 7806,
Bilston
WV1 9QR

You will find further information in Get information about property and land

We hope this reply is of assistance.

If you would like to discuss this correspondence or require it in an alternative format please contact us, quoting our reference.

Yours faithfully,

S. G. Haste

Wales office
Land Registry

03000060411

Tab 4

One-page note: the conveyance of 31 December 1969 and the 1971 abstract of title, compared against the documents listed at Tab 3 (prepared from Tabs 2 and 3; adds no new facts)

23 Oct 2026

Source: Tabs 2 and 3

Bundle pages 22 to 23

Note: the conveyance of 31 December 1969 and the 1971 abstract of title

Prepared 23 October 2026 from Tab 2 (HM Land Registry letter of 19 April 2026) and Tab 3 (HM Land Registry letter of 30 July 2026, ref N610CGV). It adds no facts beyond those two letters.

Document	Tab 2: HM Land Registry, 19 April 2026	Tab 3: documents listed as held, 30 July 2026
Conveyance dated 31 December 1969, Western Ground Rents Limited to the British Petroleum Pension Trust	Recited in the conveyance of 19 November 1982 (WA231076) and in the conveyance of 23 May 1975 (WA240304). Tab 2 concludes that the British Petroleum Pension Trust acquired the land in 1969 (page 3).	Not listed for either title.
Abstract of title dated 1971	Listed on form DL as lodged with the first-registration application for WA231076 of 30 November 1982 (page 2); for WA240304, the files indicate HM Land Registry "had sight of a copy" (page 3).	Not listed for either title.
Conveyance dated 23 May 1975	The British Petroleum Pension Trust Limited, BP Trustees Limited and BP Properties Limited; the deed relied on for WA240304 (page 3).	Listed: WA240304 item 12. Item 1 is listed as a plan to the conveyance dated 23 May 1975, and item 13 as a plan to a conveyance dated 23 February 1975.
Conveyance dated 19 November 1982	The British Petroleum Pension Trust, BP Trustees Limited and BP Properties Limited; the deed relied on for WA231076 (page 3).	Listed: WA231076 item 4.
Form DL: list of documents lodged with first registration	Named as the list on which the 1971 abstract appears (page 2).	Listed: WA231076 item 17 ("A13-DL-List of documents lodged with first registration").
First-registration applications	WA231076: 30 November 1982. WA240304: 23 February 1983 (page 3).	Listed: WA231076 item 13 (form 1E, 30 November 1982); WA240304 item 11 (form 1C).
Application to amalgamate the titles	A request to amalgamate the two titles is recorded (page 3).	Listed: WA231076 item 14 (dated 2 February 1987).
Correspondence from Linklaters & Paines	Not mentioned.	Listed: WA231076 items 16 and 18; WA240304 items 5, 7 and 11.

Counts

Tab 3 lists 30 documents for WA231076 and 13 for WA240304, and states that they are held on file and will remain on file. Neither letter states where the original 1969 conveyance or the 1971 abstract is now held.

Earlier instruments

Tab 3 also lists, for WA231076, a conveyance dated 23 February 1905, an agreement dated 15 May 1924 and a deed dated 29 March 1961.

Tab 5

Companies House register: BP Properties Limited, company no. 00699446, overview page (printed 23 October 2026)

23 Oct 2026

Source: https://find-and-update.company-information.service.gov.uk/company/00699446

Bundle pages 24 to 27

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Hide this message

Companies House does not check the accuracy of the information filed (https://www.gov.uk/guidance/searching-the-companies-house-register)

Search for a company or officer

Advanced company search (/advanced-search)

BP PROPERTIES LIMITED

Company number **00699446**

Follow this company

File for this company (https://beta.companieshouse.gov.uk/company/00699446/authorise?return_to=/company/00699446)

Overview | Filing history | People | Charges | More

Registered office address
Chertsey Road, Sunbury On Thames, Middlesex, TW16 7BP

Company status
Active

Company type

Private limited Company

Incorporated on
27 July 1961

Accounts

Next accounts made up to **31 December 2026**
due by **30 September 2027**

Last accounts made up to **31 December 2025**

Confirmation statement

Next statement date **1 December 2026**
due by **15 December 2026**

Last statement dated **1 December 2025**

Nature of business (SIC)

- 68100 - Buying and selling of own real estate

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Cookies (https://beta.companieshouse.gov.uk/help/cookies)
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Accessibility statement (https://beta.companieshouse.gov.uk/help/accessibility-statement)
Developers Link opens in new tab

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Tab 6

Companies House register: BP Pension Trustees Limited, company no. 00230748, overview page with previous name The British Petroleum Pension Trust Limited (25 May 1928 to 31 March 1989) (printed 23 October 2026)

23 Oct 2026

Source: https://find-and-update.company-information.service.gov.uk/company/00230748

Bundle pages 28 to 31

GOV·UK

Find and update company information

(https://beta.companieshouse.gov.uk/)

Companies House does not check the accuracy of the information filed (https://www.gov.uk/guidance/searching-the-companies-house-register)

Search for a company or officer

Advanced company search (/advanced-search)

BP PENSION TRUSTEES LIMITED

Company number **00230748**

Follow this company

File for this company (https://beta.companieshouse.gov.uk/company/00230748/authorise?return_to=/company/00230748)

Overview | Filing history | People | Charges | More

Registered office address
Chertsey Road, Sunbury On Thames, Middlesex, TW16 7BP

Company status
Active

Company type
Private limited Company

Incorporated on
25 May 1928

Accounts

Next accounts made up to **31 December 2026**
due by **30 September 2027**

Last accounts made up to **31 December 2025**

Confirmation statement

Next statement date **1 June 2027**
due by **15 June 2027**

Last statement dated **1 June 2026**

Nature of business (SIC)

- 65300 - Pension funding

Previous company names

Name	Period
BRITISH PETROLEUM PENSION TRUST LIMITED(THE)	25 May 1928 - 31 Mar 1989

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Tab 7

Practice Direction 57AD (Civil Procedure Rules), Disclosure in the Business and Property Division: contents and paragraphs 1 to 4, including 3.1(1) and 4.1 to 4.2 (justice.gov.uk printout, pages 1 to 7 of 34; full text at the source)

23 Oct 2026

Source: https://www.justice.gov.uk/courts/procedure-rules/civil/rules/part-57a-business-and-property-courts/practice-direction-57ad-disclosure-in-the-business-and-property-courts

Bundle pages 32 to 39

PRACTICE DIRECTION 57AD – DISCLOSURE IN THE BUSINESS AND PROPERTY DIVISION

Title	Paragraph number
General	PARA.1
SECTION I	
Principles, “documents”, “adverse” and “known adverse documents”	PARA.2
Duties in relation to disclosure	PARA.3
Preservation of documents	PARA.4
Initial Disclosure	PARA.5
Extended Disclosure	PARA.6
Identifying the Issues for Disclosure	PARA.7
The Extended Disclosure Models	PARA.8
Other provisions concerning Disclosure Models	PARA.9
Completion of the Disclosure Review Document	PARA.10

Title	Paragraph number
Disclosure Guidance	PARA.11
Complying with an order for Extended Disclosure	PARA.12
Production of documents	PARA.13
Right to withhold production of documents (other than public interest immunity)	PARA.14
Confidentiality	PARA.15
Redaction	PARA.16
Failure adequately to comply with an order for Extended Disclosure	PARA.17
Varying an order for Extended Disclosure; making an additional order for, or in relation to, disclosure of specific documents	PARA.18
Restriction on use of a privileged document which has been inadvertently produced	PARA.19
Sanctions	PARA.20
Documents referred to in evidence	PARA.21
Cost	PARA.22
False Disclosure Certificates	PARA.23
SECTION II (text of rules from Part 31)	
Disclosure before proceedings start	PARA.31.16
Orders for disclosure against a person not a party	PARA.31.17
Rules not to limit other powers of the court to order disclosure	PARA.31.18
Claim to withhold inspection or disclosure of a document (public interest immunity)	PARA.31.19
Subsequent use of disclosed documents and completed Electronic Documents Questionnaires	PARA.31.22
Appendix 1: Definitions for the purposes of Section I	
Appendix 2: Disclosure Review Document	
Appendix 3: Certificate of Compliance	
Appendix 4: Disclosure Certificate	
Appendix 5: Disclosure in Less Complex Claims	
Appendix 6: Disclosure Review Document for use in Less Complex Claims	

Title	Paragraph number
Appendix 7: Explanatory notes to the Disclosure Review Document for use in Less Complex Claims	

1. General

1.1 This Practice Direction provides for disclosure in proceedings in the Business and Property Division.

1.2 The Commencement Date is 1 October 2022. This Practice Direction applies to existing and new proceedings in the Business and Property Courts of England and Wales.

1.3 This Practice Direction shall not disturb an order for disclosure made before the Commencement Date or before the transfer of proceedings into a Business and Property Court, unless that order is varied or set aside. If proceedings are transferred out of the Business and Property Division, any order for disclosure made under this Practice Direction will stand unless and until any other order is made by the transferee court.

1.4 This Practice Direction shall not, unless otherwise ordered, apply to proceedings which are—

(1) a Competition claim as defined in Practice Direction 31C;

(2) a Public Procurement claim;

(3) within the Intellectual Property and Enterprise Court;

(4) within the Admiralty Court;

(5) within the Shorter and Flexible Trials Schemes;

(6) within a fixed costs regime or a capped costs regime; or

(7) claims proceeding under Part 8.

1.5 In the Patents Court, PD63 paragraphs 6.1 to 6.3 will continue to apply under this Practice Direction with the following modification: unless the court expressly orders otherwise, no provision in this practice direction nor any disclosure order made under this Practice Direction will take effect as requiring disclosure wider than is provided for in PD 63 paragraph 6.1.

1.6 For the purposes of this Practice Direction, where its provisions conflict with other provisions of the rules or other Practice Directions, this Practice Direction shall take precedence.

1.7 Terms in Section I of this Practice Direction shall have the meaning given to them in the schedule of definitions at Appendix 1.

1.8 Save for those provisions of CPR Part 31 that are set out in Section II, and the related provisions of Practice Directions 31A and 31B, CPR Part 31 and Practice Directions 31A and 31B shall not apply to any proceedings falling within this Practice Direction.

1.9 Save that references in Section II to an Electronic Documents Questionnaire should be treated as references to the Disclosure Review Document, nothing in this Practice Direction is intended to change the application or working of those provisions of CPR Part 31 that are set out in Section II and the related provisions of Practice Directions 31A and 31B, and CPR Part 31 as a whole should still be used to interpret those provisions.

1.10 Provisions relating to Extended Disclosure in Less Complex Claims are contained in Appendix 5. Less Complex Claims are defined in paragraph 1.9 of Appendix 1 to this Practice Direction.

1.11 This Practice Direction applies in multi-party cases. However, the court may order that the timetable and procedure is to be varied so as to provide a bespoke timetable and procedure to meet the needs of the individual multi-party case. Any application to the court in this connection should be made at an early stage.

1.12 A party seeking an order for disclosure in a Part 8 claim shall serve and file a List of Issues for Disclosure in relation to which disclosure is sought and the Models that are to be adopted for each issue. The court may adapt the provisions of this Practice Direction in such manner as may be appropriate when making an order for disclosure in a Part 8 claim.

SECTION I

2. Principles, “document”, “adverse” and “known adverse documents”

2.1 Disclosure is important in achieving the fair resolution of civil proceedings. It involves identifying and making available documents that are relevant to the issues in the proceedings.

2.2 For the purpose of disclosure, the term “document” includes any record of any description containing information. The term is further defined below.

2.3 The court expects the parties (and their representatives) to cooperate with each other and to assist the court so that the scope of disclosure, if any, that is required in proceedings can be agreed or determined by the court in the most efficient way possible.

2.4 The court will be concerned to ensure that disclosure is directed to the issues in the proceedings and that the scope of disclosure is not wider than is reasonable and proportionate (as defined in paragraph 6.4) in order fairly to resolve those issues, and specifically the Issues for Disclosure (as defined in paragraph 7.6).

2.5 A “document” may take any form including but not limited to paper or electronic; it may be held by computer or on portable devices such as memory sticks or mobile phones or within databases; it includes e-mail and other electronic communications such as text messages, webmail, social media and voicemail, audio or visual recordings.

2.6 In addition to information that is readily accessible from computer systems and other electronic devices and media, the term “document” extends to information that is stored on servers and back-up systems and electronic information that has been ‘deleted’. It also extends to metadata, and other embedded data which is not typically visible on screen or a printout.

2.7 Disclosure extends to “adverse” documents. A document is “adverse” if it or any information it contains contradicts or materially damages the disclosing party’s contention or version of events on an issue in dispute, or supports the contention or version of events of an opposing party on an issue in dispute, whether or not that issue is one of the agreed Issues for Disclosure.

2.8 “Known adverse documents” are documents (other than privileged documents) that a party is actually aware (without undertaking any further search for documents than it has already undertaken or caused to be undertaken) both (a) are or were previously within its control and (b) are adverse.

2.9 For this purpose a company or organisation is “aware” if any person with accountability or responsibility within the company or organisation for the events or the circumstances which are the subject of the case, or for the conduct of the proceedings, is aware. For this purpose it is also necessary to take reasonable steps to check the position with any person who has had such accountability or responsibility but who has since left the company or organisation.

3. Duties in relation to disclosure

3.1 A person who knows that it is or may become a party to proceedings that have been commenced or who knows that it may become a party to proceedings that may be commenced is under the following duties (“the Disclosure Duties”) to the court—

(1) to take reasonable steps to preserve documents in its control that may be relevant to any issue in the proceedings;

(2) by no later than the time(s) set out in paragraphs 9.1 to 9.3, to disclose known adverse documents, unless they are privileged. This duty exists regardless of whether or not any order for disclosure is made;

(3) to comply with any order for disclosure made by the court;

(4) to undertake any search for documents in a responsible and conscientious manner to fulfil the stated purpose of the search;

(5) to act honestly in relation to the process of giving disclosure and reviewing documents disclosed by the other party; and

(6) to use reasonable efforts to avoid providing documents to another party that have no relevance to the Issues for Disclosure in the proceedings.

3.2 Legal representatives who have the conduct of litigation on behalf of a party to proceedings that have been commenced, or who are instructed with a view to the conduct of

litigation where their client knows it may become a party to proceedings that have been or may be commenced, are under the following duties to the court—

(1) to take reasonable steps to preserve documents within their control that may be relevant to any issue in the proceedings;

(2) to take reasonable steps to advise and assist the party to comply with its Disclosure Duties;

(3) to liaise and cooperate with the legal representatives of the other parties to the proceedings (or the other parties where they do not have legal representatives) so as to promote the reliable, efficient and cost-effective conduct of disclosure, including through the use of technology;

(4) to act honestly in relation to the process of giving disclosure and reviewing documents disclosed by the other party; and

(5) to undertake a review to satisfy themselves that any claim by the party to privilege from disclosing a document is properly made and the reason for the claim to privilege is sufficiently explained.

3.3 The duties under paragraphs 3.1 and 3.2 above are continuing duties that last until the conclusion of the proceedings (including any appeal) or until it is clear there will be no proceedings.

3.4 Where there is a known adverse document but it has not been located, the duty to disclose the document is met by that fact being disclosed, subject to any further order that the court may make.

4. Preservation of documents

4.1 Documents to be preserved in accordance with the duties under paragraphs 3.1(1) and 3.2(1) above include documents which might otherwise be deleted or destroyed in accordance with a document retention policy or in the ordinary course of business. Preservation includes, in suitable cases, making copies of sources and documents and storing them.

4.2 The duty under paragraph 3.1(1) and 3.2(1) includes—

(1) an obligation to suspend relevant document deletion or destruction processes for the duration of the proceedings;

(2) in accordance with paragraph 4.3 below, an obligation to send a written notification in any form to relevant employees and former employees of the party where there are reasonable grounds for believing that the employee or former employee may be in possession of disclosable documents which are not also in the party's possession; and

(3) an obligation to take reasonable steps so that agents or third parties who may hold documents on the party's behalf do not delete or destroy documents that may be relevant to an issue in the proceedings.

4.3 A written notification under paragraph 4.2 above should—

(1) identify the documents or classes of documents to be preserved; and

(2) notify the recipient that they should not delete or destroy those documents and should take reasonable steps to preserve them.

4.4 Legal representatives who have the conduct of litigation on behalf of a party to proceedings that have been commenced, or who are instructed with a view to the conduct of litigation where their client knows it may become a party to proceedings that have been or may be commenced, must within a reasonable period of being instructed—

(1) notify their client of the need to preserve documents and of their obligations under paragraph 3.1 above; and

(2) obtain written confirmation from their client or an appropriate representative of their client that their client has taken the steps required under paragraphs 4.2 and 4.3 above.

4.5 Each party must confirm in writing (and may do so by their legal representative) when serving their particulars of claim or defence (as appropriate), that steps have been taken to preserve relevant documents in accordance with the duties under paragraph 3.1(1) and 3.2(1) above, and as required by paragraph 4.1 to 4.4 above.

5. Initial Disclosure

5.1 Save as provided below, and save in the case of a Part 7 claim form without particulars of claim, each party must provide to all other parties at the same time as its statement of case an Initial Disclosure List of Documents that lists and is accompanied by copies of—

(1) the key documents on which it has relied (expressly or otherwise) in support of the claims or defences advanced in its statement of case (and including the documents referred to in that statement of case); and

(2) the key documents that are necessary to enable the other parties to understand the claim or defence they have to meet.

5.2 This form of disclosure is known as “Initial Disclosure”.

5.3 Initial Disclosure is not required where—

(1) the parties have agreed to dispense with it (see paragraph 5.8 below);

(2) the court has ordered that it is not required (see paragraph 5.10 below); or

(3) a party concludes and states in writing, approaching the matter in good faith, that giving Initial Disclosure would involve it or any other party providing (after removing duplicates, and including documents referred to at paragraph 5.4(3)(a)) more than (about) whichever is the larger of 1000 pages or 200 documents (or such higher but reasonable figure as the parties may agree), at which point the requirement to give Initial Disclosure ceases for all parties for the purposes of the case.